

Continued Land Use Hearing: September 21, 2026

10:00 a.m. - Anne G. Basker Auditorium

Attending: Commissioners Ron A. Smith and Gary L. Richardson; and Nikole Guzman, Recorder

Chair Ron Smith called the continued land use hearing to order at 10:00 a.m.

1. Declaration of Potential Conflicts of Interest

Commissioners Richardson and Smith declared there were no potential conflicts of interest.

2. Continued Land Use Hearing

Appeal of Director's Decision - Non-Farm Dwelling with Access off Lower River Road

The Board continued its consideration of an appeal objecting to the Planning Director's decision denying placement of a non-farm dwelling on property zoned Exclusive Farm Use with access off Lower River Road. Additional written information had been received. Commissioner Richardson confirmed he had reviewed the additional material and asked whether the competing soil experts had physically inspected the test pits or relied on the written record.

3. Additional Testimony and Board Deliberation

Jim Dole, representing the Bakers, stated that neither of the later soil experts had physically inspected the test pits and argued that the Planning Director's denial should be upheld. The Board discussed the conflicting soil opinions, the property's size and prior partition, historical agricultural use, irrigation and the applicable state land-use rules.

A representative for the applicant responded that the request was for a non-farm dwelling rather than a rezone and argued that the southern portion of the property had been shown through test-pit data to be generally unsuitable for farming. Mr. Dole responded that the record contained substantial evidence of agricultural capability and prior farm use and again supported the Planning Director's decision.

Commissioner Smith stated that, after considering the record, he was inclined to support the Planning Director's decision and deny the appeal. Commissioner Richardson stated that he viewed the matter as very close and was inclined to allow the non-farm dwelling, noting the competing soil evidence and the County's ability to exercise judgment on the application.

4. Motion

Chair Smith moved to deny the appeal of the Planning Director's decision denying placement of the non-farm dwelling on the property zoned Exclusive Farm Use. The motion received no second.

James Black, Planning Department, explained that because the motion received no second and the two participating Commissioners were divided, the appeal did not obtain approval and the Planning Director's denial remained in effect. Staff will prepare findings documenting the proceeding and provide notice of the decision. The decision may be appealed to the Land Use Board of Appeals (LUBA).

Chair Smith closed the continued land use hearing and stated that the Planning Director's decision was upheld.

The meeting adjourned at 10:17 a.m.